

ATTORNEY_ONLY_ANSWER_KEY

LEI Case 001 - Attorney-Only Answer Key

DO NOT UPLOAD THIS FILE TO LEI DURING TESTING.

FICTIONAL / TEST DATA / NOT VALID FOR ANY REAL IMMIGRATION FILING

Workflow Stage

`initial_intake`

Intended Test

This case tests whether LEI can review a realistic initial H-1B intake packet using documents provided by HR and the foreign national, without expecting attorney-created documents such as an LCA or support letter to already exist.

Expected Findings

1. Certified LCA Missing From Intake Packet

Expected LEI Treatment

This should **not** be treated as a defect if LEI understands the workflow stage is `initial_intake`.

Correct Severity

No Issue / Monitor, or Client/HR Information Needed only if wage/worksite information is insufficient.

Attorney Analysis

At initial intake, the certified LCA would normally be prepared by the legal team after reviewing salary, SOC, wage level, employer, and worksite details. HR and the beneficiary would not usually provide a certified LCA.

Correct App Language

No certified LCA is included, which is expected at the initial intake stage. Legal team should use the HR-provided salary, worksite, and job details to prepare the LCA after review.

2. Support Letter Missing From Intake Packet

Expected LEI Treatment

This should **not** be treated as a missing document defect at initial intake.

Correct Severity

No Issue / Monitor.

Attorney Analysis

The H-1B support letter is generally drafted by the legal team. HR provides job duties, business information, wage, worksite, and role requirements; the legal team converts those into a support letter.

Correct App Language

No employer support letter is included, which is expected at the initial intake stage. Legal team should draft the support letter using HR-provided job duties, company details, and beneficiary qualifications.

3. Passport Expires Shortly After Requested H-1B Start Date

Facts

Passport expiration date: November 15, 2026

Requested H-1B start date: October 1, 2026

Expected LEI Treatment

Flag as a beneficiary follow-up/advisory, not an automatic filing blocker.

Correct Severity

Client or Beneficiary Action Needed

Attorney Analysis

A passport expiring soon is important for travel, visa stamping, and I-94 validity. It should not be automatically classified as a petition blocker merely because it expires after the requested H-1B start date. Request updated passport if available and advise beneficiary regarding travel/I-94 implications.

Correct App Language

The beneficiary's passport expires shortly after the requested H-1B start date. This is not automatically a filing blocker, but it may affect visa stamping, travel, or I-94 validity. Request the renewed passport when available and review before any international travel.

Evidence LEI Should Cite

- Passport expiration date
- Requested H-1B start date
- Beneficiary note that passport renewal is pending

4. Hybrid Remote Work / Home Office in Athens

Facts

Primary office: Atlanta, GA

Home office: Athens, GA

Hybrid schedule: 3 days in office / 2 days remote

Expected LEI Treatment

Flag for LCA/worksite analysis.

Correct Severity

High-Risk Attorney Review

Attorney Analysis

The home office may need to be analyzed as a worksite for LCA purposes. LEI should not ignore remote work merely because the primary office is listed. Athens is not obviously interchangeable with the Atlanta worksite, so legal team should confirm the correct area of intended employment and whether the home office must be included in LCA/posting analysis.

Correct App Language

Attorney review required: The beneficiary is expected to work from a home office in Athens two days per week while the primary office is in Atlanta. Confirm whether the home office must be included in LCA/worksite analysis and whether any LCA posting or public access file steps are required.

Evidence LEI Should Cite

- HR Intake Questionnaire remote work section
- Remote Work Policy Excerpt
- Beneficiary Intake Questionnaire proposed worksite
- Address History Summary
- Offer Letter hybrid work language

5. Current Title Differs From Proposed H-1B Title

Facts

Current HRIS title: Software Developer

Current beneficiary-reported title: Software Developer

Proposed H-1B title: Software Engineer I

Expected LEI Treatment

Do not treat the title difference as automatically problematic.

Correct Severity

No Issue / Monitor

Attorney Analysis

A title change alone is not automatically a material-change issue. Because this is a cap change-of-status case, the proposed H-1B role can differ from the current OPT role. Attorney should compare duties, SOC, wage, worksite, and minimum requirements.

Correct App Language

The current role is listed as Software Developer and the proposed H-1B role is Software Engineer I. This title difference is not automatically a filing issue. Confirm that the proposed H-1B duties, wage, worksite, and requirements are accurately reflected in the filing.

6. Degree-Position Nexus Appears Strong But Should Be Documented

Facts

Proposed role: Software Engineer I

U.S. degree: M.S. in Computer Science

Foreign degree: B.Tech. in Computer Science and Engineering

Job requirements include Computer Science, Software Engineering, Computer Engineering, Information Systems, or related technical field.

Expected LEI Treatment

Treat as generally favorable, but remind legal team to connect degree, coursework, and duties in drafting.

Correct Severity

No Issue / Monitor

Attorney Analysis

The beneficiary's degrees appear directly related to the proposed Software Engineer I role. This should not be flagged as a likely RFE issue based on the available facts. Legal team should still draft the support letter to connect the degree field and technical coursework to the software engineering duties.

Correct App Language

The beneficiary's Computer Science degrees appear related to the Software Engineer I role. Legal team should document the connection between the degree field, technical coursework, and proposed duties in the support letter.

7. Salary Requires Prevailing Wage Review But Cannot Be Judged Yet

Facts

Proposed salary: \$87,500

Worksite: Atlanta, GA and possibly Athens, GA

Position: Software Engineer I

Expected LEI Treatment

Flag wage/LCA review needed. Do not conclude below prevailing wage without wage data and LCA analysis.

Correct Severity

High-Risk Attorney Review or Client/HR Information Needed

Attorney Analysis

At intake, LEI should not conclude the wage is below prevailing wage without a SOC code, wage level, area of intended employment, and prevailing wage data. It should identify that the salary must be reviewed during LCA preparation, especially because there may be more than one worksite.

Correct App Language

Wage review needed: The proposed salary is \$87,500. Legal team should confirm the correct SOC code, wage level, and area of intended employment for each worksite before preparing the LCA.

Evidence LEI Should Cite

- HR Intake Questionnaire salary
- Compensation Confirmation
- Job Description
- Worksite information

8. Name Formatting Difference

Facts

Passport: John Doe

Beneficiary questionnaire: John Doe / John A. Doe

STEM OPT EAD specimen: John A. Doe

Resume: John Doe

Expected LEI Treatment

Flag as client follow-up, not identity defect.

Correct Severity

Client or Beneficiary Action Needed

Attorney Analysis

The name variation appears to involve a middle initial. This should not be treated as a serious identity mismatch without more. Legal team should confirm the full legal name and use the passport name consistently, with other names listed where appropriate.

Correct App Language

Name formatting follow-up: Some documents list the beneficiary as John Doe while the STEM OPT EAD specimen lists John A. Doe. Confirm full legal name and any middle name or initial before preparing forms.

Summary of Expected LEI Performance

A strong LEI review should identify:

1. LCA and support letter are appropriately absent at initial intake.
2. Passport expiration is an advisory/follow-up, not a categorical blocker.
3. Athens home office requires LCA/worksite review.
4. Title difference is not automatically material.
5. Degree-position nexus is strong based on Computer Science degrees.
6. Salary requires prevailing wage/LCA review, but cannot be judged without wage analysis.
7. Name formatting difference requires confirmation, not alarm.